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Case Number: 24TRCV03768 Hearing Date: July 29, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

DONALD JAMES VARGO

, et al.;

Plaintiffs,

vs.

VOLKSWAGEN GROUP OF
AMERICA, INC.

, et al.;

Defendants.

Case

No.:

24TRCV03768

Hearing

Date:

July
29, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S
MOTION TO COMPEL INITIAL RESPONSES TO FORM INTERROGATORIES, SET ONE, FROM
PLAINTIFF DONALD JAMES VARGO

(2)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S
MOTION TO COMPEL INITIAL RESPONSES TO FORM INTERROGATORIES, SET ONE, FROM
PLAINTIFF ALEJANDRA VARGO

(3)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S
MOTION TO COMPEL INITIAL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, FROM
PLAINTIFF DONALD JAMES VARGO

(4)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S
MOTION TO COMPEL INITIAL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, FROM PLAINTIFF
ALEJANDRA VARGO

(5)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S
MOTION TO COMPEL INITIAL RESPONSES TO INSPECTION DEMAND, SET ONE, FROM
PLAINTIFF DONALD JAMES VARGO

(6)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION
TO COMPEL INITIAL RESPONSES TO INSPECTION DEMAND, SET ONE, FROM PLAINTIFF

ALEJANDRA VARGO

(7)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION
TO DEEM REQUESTS FOR ADMISSIONS, SET ONE, ADMITTED AS TO PLAINTIFF DONALD
JAMES VARGO

(8)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION
TO DEEM REQUESTS FOR ADMISSIONS, SET ONE, ADMITTED AS TO PLAINTIFF ALEJANDRA
VARGO

(9)

DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S REQUESTS
FOR MONETARY SANCTIONS

MOVING PARTY: Defendant,
Volkswagen Group of America, Inc.

RESPONDING

PARTY: Plaintiffs,
Donald James Vargo and Alejandra Vargo

(1)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Form
Interrogatories, Set One, from Plaintiff Donald James Vargo is GRANTED pursuant
to Code of Civil Procedure section 2030.290, subdivision (a).

(2)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Form
Interrogatories, Set One, from Plaintiff Alejandra Vargo is GRANTED pursuant to
Code of Civil Procedure section 2030.290, subdivision (a).

(3)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Special
Interrogatories, Set One, from Plaintiff Donald James Vargo is GRANTED pursuant
to Code of Civil Procedure section 2030.290, subdivision (a).

(4)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Special Interrogatories, Set One, from Plaintiff Alejandra Vargo is GRANTED pursuant to Code of Civil Procedure section 2030.290, subdivision (a).

(5)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Inspection Demand, Set One, from Plaintiff Donald James Vargo is GRANTED pursuant to Code of Civil Procedure section 2031.300, subdivision (b).

(6)

Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Inspection Demand, Set One, from Plaintiff Alejandra Vargo is GRANTED pursuant to Code of Civil Procedure section 2031.300, subdivision (b).

(7)

Defendant

Volkswagen Group of America, Inc.'s Motion to Deem Requests for Admission, Set One, Admitted as to Plaintiff Donald James Vargo is GRANTED pursuant to Code of Civil Procedure section 2033.280, subdivision (b).

(8)

Defendant

Volkswagen Group of America, Inc.'s Motion to Deem Requests for Admission, Set One, Admitted as to Plaintiff Alejandra Vargo is GRANTED pursuant to Code of Civil Procedure section 2033.280, subdivision (b).

(9)

Defendant

Volkswagen Group of America, Inc.'s Requests for Monetary Sanctions are GRANTED pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2030.290, 2031.300, and 2033.280.

The Court considers the moving papers filed on May 1, 2026, the opposition briefs filed on July 2, 2026, the reply briefs filed on July 7, 2026, and the supplemental declarations filed on July 14,

2026.

BACKGROUND

Factual Background

On November 6, 2024, plaintiffs Donald James Vargo and Alejandra Vargo (collectively, "Plaintiffs") filed the Complaint against defendants Volkswagen Group of America, Inc. ("Volkswagen"), PVW South Bay, LLC, dba Pacific Volkswagen, and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of the Song-Beverly Consumer Warranty Act – Breach of Express Warranties; (2) Breach of Implied Warranty (Song Beverly); (3) Violation of Business and Professions Code section 17200; and (4) Negligent Repair.

On February 24, 2026, Volkswagen served Plaintiffs with four sets of discovery requests: (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; (3) Inspection Demand, Set One; and (4) Request for Admissions, Set One. (Declaration of Chiamaka S. Enemuoh re: FROG ("Enemuoh Decl. re: FROG"), ¶ 3, Exh. A; Declaration of Chiamaka S. Enemuoh re: SROG ("Enemuoh Decl. re: SROG"), ¶ 3, Exh. A; Declaration of Chiamaka S. Enemuoh re: RFP ("Enemuoh Decl. re: RFP"), ¶ 3, Exh. A; Declaration of Chiamaka S. Enemuoh re: RFA ("Enemuoh Decl. re: RFA"), ¶ 3, Exh. A.) Plaintiffs were required to respond by March 30, 2026, without any extensions. (Enemuoh Decl. re: FROG, ¶ 4; Enemuoh Decl. re: SROG, ¶ 4; Enemuoh Decl. re: RFP, ¶ 4; Enemuoh Decl. re: RFA, ¶ 4.)

On April 21, 2026, Volkswagen sent a letter to Plaintiffs' counsel requesting a status update on the responses. (Enemuoh Decl. re: FROG, ¶ 5, Exh. B; Enemuoh Decl. re: SROG, ¶ 5, Exh. B; Enemuoh Decl. re: RFP, ¶ 5, Exh. B; Enemuoh Decl. re: RFA, ¶ 5, Exh. B.) Plaintiffs failed to respond to the meet-and-confer correspondence or to provide responses to the discovery requests by the filing date of May 1, 2026. (Enemuoh Decl. re: FROG, ¶ 6; Enemuoh Decl. re: SROG, ¶ 6; Enemuoh Decl. re: RFP, ¶ 6; Enemuoh Decl. re: RFA, ¶ 6.)

Plaintiffs have submitted the following unverified discovery responses as part of their opposition briefs, which bear a service date of April 23, 2026: (1) Responses to Volkswagen's First Set of Form Interrogatories; (2) Responses

to Volkswagen's First Set of Special Interrogatories; and (3) Responses to Volkswagen's First Set of Requests for Admission.

On July 13, 2026, Plaintiffs served unverified amended discovery responses corresponding to each set of discovery requests propounded to them, including: (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; (3) Inspection Demand, Set One; and (4) Request for Admissions, Set One. (Supplemental Declaration of Ryan K. Marden re: Plaintiff Donald James Vargo ("Suppl. Marden Decl. re: Donald"), ¶¶ 3-6, Exhs. A-D; Supplemental Declaration of Ryan K. Marden re: Plaintiff Alejandra Vargo ("Suppl. Marden Decl. re: Alejandra"), ¶¶ 3-6, Exhs. A-D.)

Procedural Background

On May 1, 2026, Volkswagen filed these omnibus motions. On July 2, 2026, Plaintiffs filed opposition briefs to the motions concerning form interrogatories, special interrogatories, and requests for admission; however, they did not submit an opposition brief pertaining to the inspection demand. On July 7, 2026, Volkswagen filed reply briefs.

On July 14, 2026, the Court continued the hearings regarding the motion related to the inspection demand and the requests for admission. On the same day, Plaintiffs filed and served their unverified amended discovery responses. (Marden Decl. re: Donald, ¶¶ 3-6, Exhs. A-D; Marden Decl. re: Alejandra, ¶¶ 3-6, Exhs. A-D.)

LEGAL STANDARDS

A party must respond to interrogatories, requests for production, or requests for admission within thirty (30) days after service. (Code Civ. Proc., §§ 2030.260, subd. (a), 2031.260, subd. (a), 2033.250, subd. (a).)

If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel

responses to interrogatories other than the cut-off on hearing discovery motions, fifteen (15) days before trial.

(Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 (Sinaiko).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).)

Further, when there has been no timely response to a Code of Civil Procedure section 2031.010 demand, the demanding party may seek an order compelling a response. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to respond in a timely manner waives all objections, including those based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) Thus, unless the party to whom the demand was directed obtains relief from a waiver, they cannot raise objections to the documents demanded.

There is no time limit for a motion to compel responses to a demand for inspection, copying, testing, or sampling other than the cut-off on hearing discovery motions, fifteen (15) days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2031.300.) Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. (Code Civ. Proc., § 2031.300.) Where the motion seeks only a response to the inspection demand, no showing of “good cause” is required. (Code Civ. Proc., § 2031.300.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

Additionally, if a party to whom requests for admission are directed fails to serve a timely response, the unresponsive party waives any objection to the requests, including one based on privilege or the protection for work product. (Code Civ. Proc., § 2033.280, subd. (a).) The court, on motion, may relieve that party from this waiver on its determination that the party subsequently served a response that is in substantial compliance and if the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280, subd. (b)(1)-(2).)

Pursuant to Code of Civil

Procedure section 2033.280, "[i]f a party to whom requests for admission are directed fails to serve a timely response," the court shall make the order deeming the truth of the matters admitted unless the responding party serves before the hearing a proposed response to the requests for admission that is in substantial compliance with Code Civil Procedure section 2033.220. Code of Civil Procedure section 2033.220 requires each answer to either admit, deny, or specify that the responding party lacks sufficient information or knowledge. As stated in *Demyer v. Costa Mesa Mobile Home Estates*, the moving party is not required to meet and confer before bringing this action. (*Demyer v. Costa Mesa Mobile Home Estates*, 36 Cal.App.4th 393, 395.)

"It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).)

Under Code of Civil Procedure section 2023.030, subdivision (a), "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition

of the sanction unjust.” (Code

Civ. Proc., § 2023.030, subd. (a).)

“Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery.”

(Code Civ. Proc., § 2023.010, subd. (d).)

“The court may award

sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

DISCUSSION

Omnibus Motion

Volkswagen is seeking court

orders to compel Plaintiffs’ initial responses to three sets of discovery requests; additionally, it seeks to have Plaintiffs’ Requests for Admission, Set One, deemed admitted. (MTC re: FROG, p. 3:3-22; MTC re: SROG, p. 3:3-22; MTC re: RFP, p. 3:3-22; MTC re: RFA, p. 3:3-18.) Volkswagen has erroneously combined eight distinct motions into four separate filings.

Multiple motions should not be combined into

a single filing. (See Gov. Code, § 70617,

subd. (a)(4) [setting forth the required filing fee for each motion,

application, or any other paper or request requiring a hearing].) Combining multiple motions under the guise of one motion with one hearing reservation manipulates the Court Reservation

System and unfairly jumps ahead of other litigants. Moreover, combining motions to avoid payment

of separate filing fees deprives the Court of the filing fees it is otherwise

entitled to collect. Filing fees are

jurisdictional, and it is mandatory for court clerks to demand and receive

them. (See *Duran v. St. Luke’s*

Hospital (2003) 114 Cal.App.4th 457, 460.)

The Court reminds Volkswagen that all future

motions must be filed individually, pursuant to Government Code section 70617. On June 24, 2026, the Court noted that

Volkswagen had submitted an omnibus motion and stated, “Any omnibus filings

submitted in the future shall be denied without prejudice.” (June 24, 2026 Minute Order, p. 6.) As Volkswagen filed these omnibus motions on

May 1, 2026, the Court will not deny them without prejudice. However, any omnibus motions filed after the June 24, 2026 hearing will be denied without prejudice. Furthermore, the following orders are contingent upon Volkswagen paying four additional filing fees within ten (10) days of the date of this order.

Untimely Opposition Brief

Volkswagen requests that the Court not consider any untimely opposition briefs filed by Plaintiffs. (Reply, p. RPD, p. 2:12-20; Reply re: RFA, p. 2:19-27.) The Court DENIES Volkswagen's request.

"All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).)

Given that the motions related to the inspection demand and the requests for admission were scheduled to be heard on July 14, 2026, Plaintiffs were required to file and serve their opposition briefs by June 30, 2026. However, Plaintiffs submitted their opposition brief related to the requests for admission on July 2, 2026, which is two court days past the deadline.

The Court typically exercises its discretion to consider an opposition brief that is filed a couple of days late, particularly when the moving party submits a reply brief. (See Cal. Rules of Court, rule 3.1300(d).) In this case, Plaintiffs submitted their opposition brief two court days after the established deadline, while Volkswagen submitted its reply brief within the required time frame. Consequently, the Court chooses to exercise its discretion to consider the untimely opposition brief.

Motions to Compel

Plaintiffs have submitted the following unverified discovery responses as part of their opposition briefs, which bear a service date of April 23, 2026: (1) Responses to Volkswagen's First Set of Form Interrogatories; (2) Responses to Volkswagen's First Set of Special Interrogatories; and (3) Responses to Volkswagen's First Set of Requests for Admission. Furthermore, on July 13, 2026, Plaintiffs served unverified amended discovery responses

corresponding to each set of discovery requests propounded to them, including:

(1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; (3) Inspection Demand, Set One; and (4) Request for Admissions, Set One. (Suppl. Marden Decl. re: Donald, ¶¶ 3-6, Exhs. A-D; Suppl. Marden Decl. re: Alejandra, ¶¶ 3-6, Exhs. A-D.)

Consequently, it remains undisputed that Plaintiffs did not provide verified responses to Volkswagen's discovery requests. Given that unverified responses are tantamount to no responses at all, the Court GRANTS Volkswagen's omnibus motions to compel initial responses and deems the matters admitted. (See *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635-636.)

Requests For Monetary Sanctions

Volkswagen requests a total of \$6,560.00 in sanctions to cover attorney's fees and costs incurred from the filing of each omnibus motion, with each motion accounting for \$1,640.00. (MTC re: FROG, p. 6:5-25; MTC re: SROG, p. 6:3-19; MTC re: RFP, pp. 6:10-7:3; MTC re: RFA, pp. 6:10-7:2.) These requests are made pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2030.290, 2031.300, and 2033.280. (MTC re: FROG, p. 6:7-15; MTC re: SROG, p. 6:5-13; MTC re: RFP, p. 6:12-20; MTC re: RFA, p. 6:11-19.)

The requests are supported by declarations from Volkswagen's counsel, Chiamaka S. Enemuoh. In these declarations, Enemuoh states that their hourly rate is \$395.00 and that they have dedicated 2.0 hours to drafting each motion. (Enemuoh Decl. re: FROG, ¶ 7; Enemuoh Decl. re: SROG, ¶ 7; Enemuoh Decl. re: RFP, ¶ 7; Enemuoh Decl. re: RFA, ¶ 7.) Furthermore, Enemuoh anticipates spending an additional 2.0 hours to review each opposition and prepare a reply brief. (Enemuoh Decl. re: FROG, ¶ 7; Enemuoh Decl. re: SROG, ¶ 7; Enemuoh Decl. re: RFP, ¶ 7; Enemuoh Decl. re: RFA, ¶ 7.) Additionally, Volkswagen incurred \$240.00 in filing fees. (Enemuoh Decl. re: FROG, ¶ 7; Enemuoh Decl. re: SROG, ¶ 7; Enemuoh Decl. re: RFP, ¶ 7; Enemuoh Decl. re: RFA, ¶ 7.)

Considering that the Court is granting these motions and does not find the imposition of sanctions to be unjust, the Court GRANTS Volkswagen's requests for sanctions against Plaintiffs. This determination is made notwithstanding Plaintiffs' argument that their failure to serve responses in a timely manner resulted from an internal office error

and the absence of Plaintiffs' counsel, who was attending to his father at the time Volkswagen's counsel served the meet-and-confer letter on April 21, 2026. (Declaration of Ryan K. Marden re: FROG, ¶¶ 4, 7; Declaration of Ryan K. Marden re: SROG, ¶¶ 4, 7; Declaration of Ryan K. Marden re: RFA, ¶¶ 4, 7.)

Plaintiffs have still not provided verified responses despite their counsel's return and knowledge of the overdue responses, which have been outstanding for several months. Consequently, the Court finds that sanctions are warranted and concludes that the requested amounts are appropriate.

ORDERS

1) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Form Interrogatories, Set One, from Plaintiff Donald James Vargo is GRANTED.

2) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Form Interrogatories, Set One, from Plaintiff Alejandra Vargo is GRANTED.

3) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Special Interrogatories, Set One, from Plaintiff Donald James Vargo is GRANTED.

4) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Special Interrogatories, Set One, from Plaintiff Donald James Vargo is GRANTED.

5) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Inspection Demand, Set One, from Plaintiff Donald James Vargo is GRANTED.

6) Defendant

Volkswagen Group of America, Inc.'s Motion to Compel Initial Responses to Inspection Demand, Set One, from Plaintiff Alejandra Vargo is GRANTED.

7) Plaintiffs

Donald James Vargo and Alejandra Vargo are ordered to provide verified, code-compliant responses and documents by August 10, 2026, without objections.

8) Defendant

Volkswagen Group of America, Inc.'s Motion to Deem Requests for Admission, Set One, Admitted as to Plaintiff Donald James Vargo is GRANTED.

9) Defendant

Volkswagen Group of America, Inc.'s Motion to Deem Requests for Admission, Set One, Admitted as to Plaintiff Alejandra Vargo is GRANTED.

10) Defendant

Volkswagen Group of America, Inc.'s Requests for Monetary Sanctions are GRANTED.

11) Plaintiffs

Donald James Vargo and Alejandra Vargo shall pay Volkswagen's counsel \$6,560.00 on or before August 29, 2026.

12) These

orders are contingent upon Volkswagen paying four additional filing fees within ten (10) days of the date of this order.

13) Volkswagen

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 29, 2026

Tamara

Hall

Judge

of the Superior Court